

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

TAZIA SUARES

Plaintiff,

SUMMONS

- against -

Index No.:

THE CITY OF NEW YORK; DETECTIVE
ANDRE SMITH, Shield No. 6269 and POLICE OFFI-
CERS JOHN AND JANE DOES NUMBERS 1-10,

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Bronx
County as the place of trial.

----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York
January 3, 2023

Yours, etc.

Michael Chessa

Michael Chessa, Esq.
Daniela Jampel, Esq.
Law Office of Michael Chessa, PLLC
44 Court Street, suite 1217
Brooklyn, New York 11201

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE Andre Smith, Shield No. 6269, 044 Precinct, 2 East 169th Street Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

TAZIA SUARES

VERIFIED COMPLAINT

Plaintiff,

- against -

THE CITY OF NEW YORK; DETECTIVE
ANDRE SMITH, Shield No. 6269 and POLICE OFFI-
CERS JOHN AND JANE DOES NUMBERS 1-10,

Defendants.

PRELIMINARY STATEMENT

1. This is a civil action in which the Plaintiff seeks relief for the defendants' violation of her rights secured by the Civil Rights Act of 1871, 42 U.S.C. Section 1983; and by the United States Constitution, including its Fourth and Fourteenth Amendments. The Plaintiff seeks damages, both compensatory and punitive, affirmative and equitable relief, an award of costs and attorneys' fees, and such other and further relief as this court deems equitable and just.

JURISDICTION

2. This action is brought pursuant to the Constitution of the United States, including its Fourth and Fourteenth Amendments, and pursuant to 42 U.S.C. §1983. Jurisdiction is conferred upon this court by 42 U.S.C. §1983 and 28 U.S.C. §§1331 and 1343(a)(3) and

(4), this being an action seeking redress for the violation of the Plaintiff's constitutional and civil rights.

JURY TRIAL DEMANDED

3. Plaintiff demands a trial by jury on each and every one of her claims as pleaded herein.

VENUE

4. Venue is proper for the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391 (a), (b) and (c).

PARTIES

5. Plaintiff TAZIA SUARES at all times relevant herein was a resident of the State of New York, Bronx County. Plaintiff is African-American, of Dominican heritage.

6. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department.

7. Defendants DETECTIVE ANDRE SMITH, Shield No. 6269 and POLICE OFFICERS JOHN and JANE DOES are and were at all times relevant herein duly appointed and acting officers, servants, employees and agents of THE CITY OF NEW YORK and/or the New York City Police Department ("NYPD"), a municipal agency of defendant

THE CITY OF NEW YORK, and / or the Bronx District Attorney's Office, the employees of which are paid by THE CITY OF NEW YORK. Defendants are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of defendant THE CITY OF NEW YORK, were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police Department and / or the Bronx District Attorney's Office, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

8. Defendants DETECTIVE ANDRE SMITH, Shield No. 6269 and POLICE OFFICERS JOHN and JANE DOES are and were at all times relevant herein duly appointed and acting supervisory officers, servants, employees and agents of THE CITY OF NEW YORK and/or the New York City Police Department and/or the Bronx District Attorney's Office, responsible for the training, retention, supervision, discipline and control of subordinate members of the police department and/or Bronx District Attorney's Office under their command. Defendants are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as supervisory officers, agents, servants, and employees of defendant THE CITY OF NEW YORK and/or Bronx District Attorney's Office, were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police Department and/or Bronx District Attorney's Office, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course

of their duties. Defendants DETECTIVE ANDRE SMITH, Shield No. 6269 and POLICE OFFICERS JOHN and JANE DOES are sued individually.

9. Defendants S DETECTIVE ANDRE SMITH, Shield No. 6269 and POLICE OFFICERS JOHN and JANE DOES are and were at all times relevant herein duly appointed and acting supervisory officers, servants, employees and agents of THE CITY OF NEW YORK and/or the New York City Police Department and/or the Bronx District Attorney's Office, responsible for the training, retention, supervision, discipline and control of subordinate members of the police department and/or Bronx District Attorney's Office under their command. Defendants are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as supervisory officers, agents, servants, and employees of defendant THE CITY OF NEW YORK and/or Bronx District Attorney's Office, were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police Department and/or Bronx District Attorney's Office, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

10. Defendants DETECTIVE ANDRE SMITH, Shield No. 6269 and POLICE OFFICERS JOHN and JANE DOES are sued individually.

STATEMENT OF FACTS

11. On Friday, March 23, 2018, approximately 4:30 a.m., Plaintiff was asleep inside of her home at 1315 Sheridan Avenue., Apt. #31 B, Bronx, NY.

12. Plaintiff's apartment is located on the fourth floor of the building, and is a one bedroom apartment.

13. Plaintiff was five months pregnant at this time.

14. Plaintiff was finishing taking a shower and undressed at the time of the following incident.

15. Plaintiff's mother Olivia Suares ("Olivia") was asleep in the living room of the apartment, which Plaintiff's mother also used as her bedroom.

16. Plaintiff's mother was awoken by banging on the apartment's door.

17. After Plaintiff's mother spoke with Plaintiff's boyfriend, Plaintiff's mother went over to the door and asked "who?" [i.e., who is there].

18. A voice responded that it was the police.

19. Plaintiff's mother then opened the door.

20. As soon as Plaintiff's mother opened the door a large number of JOHN DOES members of the NYPD - on information and belief including some or all of SERGEANT "FNU" [First Name Unknown] FLORES; POLICE OFFICER MATTHEW CANIGLIA; POLICE LIEUTENANT MICHAEL BOPP ; RETIRED LIEUTENANT NICOLAS CHABERT; DETECTIVE JASON BAKER; DETECTIVE ANDRE SMITH, Shield No. 6269; DETECTIVE MICHAEL DISKIN; POLICE SERGEANT MARIA VELIZ; POLICE OFFICER LEE RUBIN; POLICE OFFICER NOEL ESCOTO; POLICE OFFICER JEURI PAULINO; POLICE OFFICER JUAN BURGOS; DETECTIVE "FNU" HENNESSY; POLICE OFFICER "FNU" NAPOLI; POLICE DETECTIVE JORGE MERGECHÉ; POLICE SERGEANT JESUS FREYTES; POLICE OFFICER ANDREW

HEIDANUS; POLICE SERGEANT “FNU” NICHOLS; POLICE DETECTIVE DARRELL JULIEN; POLICE SERGEANT “FNU” ROBERTS; POLICE DETECTIVE “FNU” BRENNAN; and POLICE DETECTIVE SCOTT PATTERSON - rushed in to Plaintiff’s apartment.

21. Some of the JOHN DOES were in uniform, and some were not.

22. Neither Plaintiff, nor the other people present in her apartment, gave the JOHN DOES consent to enter her apartment, and the JOHN DOES never asked for consent before rushing into Plaintiff’s apartment without permission.

23. The JOHN DOES were asking Plaintiff’s mother if she had heard any gunshots from her home, and telling Plaintiff’s mother that someone had gotten shot in an apartment located under her apartment from the bedroom of her home.

24. Plaintiff’s mother responded that she had not heard any gunshot, and that there were not any guns in her house.

25. There had not been any gunshot emanating from Plaintiff’s apartment.

26. The JOHN DOES officers then entered the bedroom of Plaintiff’s apartment, without the consent of Plaintiff (or of the others present in the apartment).

27. Plaintiff’s boyfriend was in bed in the bedroom.

28. The JOHN DOES did not speak with him, however.

29. Plaintiff entered the bedroom.

30. Plaintiff and Plaintiff’s mother told the JOHN DOES over and over again that there were no guns in her home.

31. The JOHN DOES kept falsely insisting that a bullet had emanated from Plaintiff's apartment, and struck someone in an apartment below.

32. JOHN DOES left, and then returned to (possibly including other JOHN DOES), Plaintiff's apartment.

33. JOHN DOES returned to Plaintiff's apartment even though any exigent circumstances that, arguendo, existed for their initial warrantless entry had evaporated through their initial search, which did not yield any firearm.

34. After being in Plaintiff's apartment for approximately 30-45 minutes, one of the JOHN DOES - on information and belief of the rank of Lieutenant, on information and belief LIEUTENANT CHABERT - told Plaintiff and her mother that they were going to be brought to the police precinct for questioning.

35. Plaintiff was told this in a peremptory manner, and compliance was not optional.

36. LIEUTENANT CHABERT also falsely told Plaintiff's mother that there was a bullet hole through the floor of her apartment.

37. There was no bullet hole in Plaintiff's floor, however.

38. LIEUTENANT CHABERT pointed out an area of Plaintiff's floor that had scuff marks and / or drill marks on it, but no bullet hole, and no holes of any other sort that went all the way through the floor.

39. Defendants JULIEN and ROBERTS were present in Plaintiff's apartment along with LIEUTENANT CHABERT.

40. At one point DETECTIVE DISKIN asked Plaintiff to tell him that the alleged incident was an accident.

41. Plaintiff and Plaintiff's mother repeatedly refused to state this since no gun had been fired in her apartment.

42. Plaintiff and her mother were brought to the NYPD 44th Precinct for questioning.

43. Plaintiff's boyfriend was handcuffed and formally arrested and booked.

44. One of the JOHN DOES showed Plaintiff four bullets in a plastic container that the police claim were found in Plaintiff's apartment.

45. An NYPD property invoice states that the bullets were found by the police in the bedroom shared by Plaintiff and her boyfriend, "IN THE BOTTOM OF A THREE-PARTITION HAMPER (RIGHT-MOST PARTITION)" in a Rubbermaid container.

46. The JOHN DOES never claimed to have found a gun in Plaintiff's apartment.

47. Plaintiff was held by the JOHN DOES that morning at the 44th Precinct for approximately two hours – from approximately 6 a.m. to 8 a.m.

48. After being held at the 44th Precinct for approximately two hours, the JOHN DOES permitted Plaintiff (as well as Plaintiff's mother) to leave.

49. Plaintiff's boyfriend was arrested by the NYPD and charged by the Bronx District Attorney's Office for the shooting that the individual Defendants claimed emanated from Plaintiff's apartment.

50. The "Details" section on Plaintiff's boyfriend's arrest report states that Plaintiff's boyfriend "DID DISCHARGE A FIREARM IN HIS APARTMENT FLOOR, CAUSING A BULLET TO ENTER THE APARTMENT BELOW, STRIKING THE C/V IN THE BACK. BULLETTS WERE RECOVERED FROM THE DEFENDANT'S ROOM."

51. Defendant HEIDANUS is listed on the NYPD Complaint reports as the “Reporting / Investigating M.O.S. [member of service].”

52. The Complaint reports state, inter alia, that on 3/23/18 there was a “(CONFERRAL) DETECTIVE BUREAU – SQUAD.”

53. When Plaintiff and Plaintiff’s mother got back to the apartment, JOHN DOES members of the NYPD were still present in the apartment.

54. The JOHN DOES told Plaintiff and Plaintiff’s mother that they would not be permitted to enter their apartment unless Plaintiff’s mother signed a permission to search form.

55. The JOHN DOES told Plaintiff’s mother that she would be refused entrance to her apartment until Monday, when they would get a judge to sign a document, unless she signed the form.

56. Despite Plaintiff’s mother’s vocal objections to the JOHN DOES being in her apartment, Plaintiff’s mother was compelled under duress to sign the consent form in order to re-enter her apartment.

57. According to Defendant LEE’s memo book, Defendant NICHOLS requested that Defendant LEE and other JOHN DOES members of the NYPD return to Plaintiff’s apartment at approximately 11 a.m., and Defendant LEE and other JOHN DOES members of the NYPD did so.

58. Later that evening, at approximately 6 p.m., Plaintiff received a phone call – on information and belief from DETECTIVE ANDRE SMITH - instructing her to come back down to the 44th Precinct for further questioning.

59. Plaintiff went back to the 44th precinct accompanied by her mother for moral support.

60. DETECTIVE “FNU” HENNESSY and DETECTIVE ANDRE SMITH questioned Plaintiff and her mother that evening at the 44th Precinct.

61. After being questioned by DETECTIVE “FNU” HENNESSY and DETECTIVE SMITH for some time that evening, Plaintiff and her mother were then again permitted to leave the precinct.

62. The “Monitoring Investigator” for those interrogations was Defendant MERGECHE, and the supervisor for those interrogations was Defendant FREYTES.

63. Plaintiff’s boyfriend was questioned by Defendant SMITH and Defendant BAKER.

64. The “Monitoring Investigator” for that interrogation was Defendant NAPOLI, and the supervisor for that interrogation was Defendant BOPP.

65. NYPD records state that all of Defendants NAPOLI, SMITH, MERGECHE, and FREYTES were present at the scene.

66. Defendant JULIEN and Defendant CHABERT took / collected photos on the date of the incident in both Plaintiff’s apartment and in the apartment below.

67. The photos taken of Plaintiff’s floor show scuff and other marks, but no holes that go through to the floor below.

68. Additionally, there are photos of more than one hole in the ceiling of the apartment below Plaintiff’s (i.e., the photos of the ceiling hole taken by Defendant JULIEN and Defendant CHABERT are of different holes).

69. On information and belief, the individual Defendants never inserted any probe into either Plaintiff's floor or the ceiling of the apartment below, to see if any hole existed connecting the apartments through the floor / ceiling.

70. No hole existed connecting the apartments through the floor / ceiling.

71. Additionally, the NYPD's records indicate that the wife of the man who was shot told the police that while she was sleeping next to her husband she "heard a large boom noise."

72. However, as per NYPD records, members of the NYPD interviewed numerous neighbors – including from the apartment directly above Plaintiff's apartment, from the apartment next door to Plaintiff's apartment, and from another apartment on the floor below Plaintiff's apartment – and none of those neighbors heard anything like a gunshot.

73. Neither did Plaintiff, Plaintiff's mother, or Plaintiff's boyfriend hear anything like a gunshot.

74. On August 24, 2018, Plaintiff was indicted stemming from the alleged shooting incident described supra, and charged in the indictment with Criminal Possession of a Firearm, Assault in the Second Degree, Reckless Endangerment in the First Degree, Reckless Endangerment in the Second Degree, Assault in the Third Degree, Criminal Possession of a Weapon in the Fourth Degree, and Possession of Ammunition.

75. On September 12, 2018, at approximately 6 a.m., Plaintiff was wrongfully arrested at her home by JOHN DOES (on information and belief members of the NYPD Warrants Squad), on information and belief based upon the indictment (the first time she became aware that she had been indicted), and held initially at the NYPD 44th Precinct.

76. Plaintiff was then brought at approximately noon to Bronx Central Booking, and where bail was set at \$30,000.00.

77. Plaintiff was then transferred to Rikers Island and held until September 14, 2018 at approximately 3:00 a.m..

78. Those indictment charges against Plaintiff were dismissed on January 8, 2020.

79. On information and belief, all of the individual Defendants participated directly in the violation of Plaintiff's rights, either by, inter alia, unlawfully entering, searching, remaining in, and / or denying Plaintiff access to her home unless she signed a consent to search form under duress, and / or by coercing and / or tricking Plaintiff into giving statements, and / or in falsely arresting and imprisoning and / or fabricating evidence against and / or wrongfully prosecuting Plaintiff, and / or conspiring with each other to accomplish same.

FIRST CLAIM

DEPRIVATION OF RIGHTS UNDER THE UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983

80. Plaintiff incorporates by reference the allegations set forth in all previous Paragraphs as if fully set forth herein.

81. By their conduct and actions in falsely arresting and imprisoning Plaintiff, trespassing upon Plaintiff and her home, unlawfully searching of Plaintiff's home, violating rights to equal protection of, violating rights to due process of Plaintiff (including fabricating evidence), wrongfully prosecuting Plaintiff, invading Plaintiff's privacy and dignity, conspiring against Plaintiff, failing to intercede on behalf of the Plaintiff and in failing

to protect the Plaintiff from the unjustified and unconstitutional treatment she received at the hands of other defendants, Defendants DETECTIVE ANDRE SMITH, Shield No. 6269 and POLICE OFFICERS JOHN and JANE DOES, acting under color of law and without lawful justification, intentionally, maliciously, and with a deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of Plaintiffs' constitutional rights as guaranteed under 42 U.S.C. §1983 and the United States Constitution, including its Fourth and Fourteenth amendments.

82. As a result of the foregoing, Plaintiff was deprived of her liberty and property, experienced pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

SECOND CLAIM

DEPRIVATION OF RIGHTS UNDER THE UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983

83. The Plaintiff incorporates by reference the allegations set forth in all previous Paragraphs as if fully set forth herein.

84. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law, individually and in concert, to deprive Plaintiff of his constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to, the right to be free from unreasonable seizures, the right to be free from arrest without probable cause, the right to be

free from deprivation of liberty without due process of law, and the right to be free from detention and prosecution without probable cause.

85. In committing the acts and omissions complained of herein, the individual defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

86. As a direct and proximate result of the individual defendants' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

87. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

THIRD CLAIM

DEPRIVATION OF RIGHTS UNDER THE UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983

88. The Plaintiff incorporates by reference the allegations set forth in all previous Paragraphs as if fully set forth herein.

89. A criminal proceeding was initiated against Plaintiff in Bronx County Criminal Court.

90. The proceeding was initiated by the criminal complaint, which included allegations that the individual defendants knew or should have known to be untrue.

91. The proceeding was initiated by presenting evidence to the grand jury that the individual defendants knew or should have known to be untrue.

92. Plaintiff was indicted based on evidence presented to the grand jury by the individual defendants that the individual defendants knew or should have known to be untrue.

93. The criminal proceeding was terminated in Plaintiff's favor when it was dismissed in the interests of justice.

94. There was no probable cause for any of the charges brought against Plaintiff.

95. Any presumption of probable cause is rebutted by the evidence submitted by the individual defendants to secure, inter alia, the warrant and/or the indictment against Plaintiff because the individual defendants knew or should have known that the aforementioned evidence was false and/or fabricated.

96. The proceeding was brought out of actual malice and in order to cover up for the defendants' misconduct.

97. The defendant officers committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

98. As a direct and proximate result of the conduct of the defendant officers, Plaintiff suffered the injuries and damages set forth above.

FOURTH CLAIM

DEPRIVATION OF RIGHTS UNDER THE UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983

100. The Plaintiff incorporates by reference the allegations set forth in all previous Paragraphs as if fully set forth herein.

101. By their conduct in failing to remedy the wrongs committed by their subordinates and in failing to properly train, supervise, or discipline their subordinates, supervisory defendants DETECTIVE ANDRE SMITH, Shield No. 6269 and POLICE OFFICERS

JOHN and JANE DOES caused damage and injury in violation of Plaintiff's rights guaranteed under 42 U.S.C. §1983 and the United States Constitution, including its Fourth and Fourteenth amendments.

102. As a result of the foregoing, Plaintiff was deprived of her liberty and property, experienced pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM

LIABILITY OF DEFENDANT THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS

103. The Plaintiff incorporates by reference the allegations set forth in all previous Paragraphs as if fully set forth herein.

104. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department and through the Bronx District Attorney's office, and through the individual defendants had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

105. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department and through the Bronx District Attorney's office, and through the individual defendants, had de facto policies, practices, customs, and usages of failing to properly train, screen, supervise, or discipline employees and police officers, and of failing to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline said defendants. These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

106. At all times material to this complaint, the defendant THE CITY OF NEW YORK, acting through its police department and through the Bronx District Attorney's office, and through the individual defendants, had de facto policies, practices, customs and/or usages of encouraging and/or tacitly sanctioning the cover-up of other law enforcement officers' misconduct, through the fabrication of false accounts and evidence and/or through "the blue wall of silence." Such policies, practices, customs and/or usages are a direct and proximate cause of the unconstitutional conduct alleged herein.

107. At all times material to this complaint, the defendant THE CITY OF NEW YORK, acting through its police department and through the Bronx District Attorney's office, and through the individual defendants, had de facto policies, practices, customs and/or usages of engaging in illegal and harassing raids and arrests, particularly upon people of Hispanic or African-American ethnicity, and of failing to properly train, supervise or discipline police supervisors and subordinate officers concerning same. Such policies, practices, customs and/or usages are a direct and proximate cause of the unconstitutional conduct alleged herein.

108. At all times material to this complaint, the defendant THE CITY OF NEW YORK, acting through its police department and through the Bronx District Attorney's office, and through the individual defendants, had de facto policies, practices, customs and/or usages of abusing grand jury subpoenas for improper investigatory purposes (including duping the recipients of grand jury subpoenas into giving statements to the District Attorney's office when they responded to the grand jury subpoenas), and of failing to properly train, supervise or discipline its police supervisors, subordinate officers, As-

sistant District Attorneys, Detective Investigators, and other District Attorney's Office concerning same. Such policies, practices, customs and/or usages are a direct and proximate cause of the unconstitutional conduct alleged herein.

109. At all times material to this complaint, the defendant THE CITY OF NEW YORK, acting through its police department and through the Bronx District Attorney's office, and through the individual defendants, had de facto policies, practices, customs and/or usages of improperly bringing charges based upon false and misleading information against the family members and friends of their actual targets, in order to increase pressure and leverage upon their actual targets during the course of the prosecution of their actual targets, and of failing to properly train, supervise or discipline its police supervisors, subordinate officers, Assistant District Attorneys, Detective Investigators, and other District Attorney's Office staff concerning same. Such policies, practices, customs and/or usages are a direct and proximate cause of the unconstitutional conduct alleged herein.

110. By implementing, enforcing, encouraging, sanctioning and/or ratifying these policies, practices, and/or customs, defendant the CITY OF NEW YORK caused the Plaintiff to lose her privacy, dignity, and liberty, and deprived her of her property, without due process of law, in violation of her rights guaranteed to every citizen of the United States by the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

111. As a result of the foregoing, Plaintiff was deprived of her liberty and property, experienced pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

WHEREFORE, the Plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
January 3, 2023

Michael Chessa

Michael Chessa, Esq.
Daniela Jampel, Esq.
Law Office of Michael Chessa, PLLC
44 Court Street, suite 1217
Brooklyn, New York 11201

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE Andre Smith, Shield No. 6269, 044 Precinct, 2 East 169th Street Bronx, NY 10452

ATTORNEY'S VERIFICATION

MICHAEL CHESSA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am owner of the law firm **LAW OFFICE OF MICHAEL CHESSA PLLC** I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: Brooklyn, New York
January 3, 2023

Michael Chessa

MICHAEL CHESSA